

The Food Safety And Standards Authority Of India (Salaries, Allowance And Other Conditions Of Service Of Chairperson And Members) Rules, 2008

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The Food Safety And Standards Authority Of India (Salaries, Allowance And Other Conditions Of Service Of Chairperson And Members) Rules, 2008

UNION OF INDIA

India

The Food Safety And Standards Authority Of India (Salaries, Allowance And Other Conditions Of Service Of Chairperson And Members) Rules, 2008

Rule

THE-FOOD-SAFETY-AND-STANDARDS-AUTHORITY-OF-INDIA-SALARIES-ALLOWANCE-AND-OTHER-CONDITIONS-OF-SERVICE-OF-CHAIRPERSON-AND-MEMBERS-RULES-2008 of 2008

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The Food Safety And Standards Authority Of India (Salaries, Allowance And Other Conditions Of Service Of Chairperson And Members) Rules, 2008

Published vide Notification G.S.R. 497(E), dated 4.7.2008, published in the Gazette of India, Extra, Part 2, Section 3(i),

dated 5.7.2008.

11.

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In exercise of the powers conferred by clause (a) of sub-section (2) of section 91 of the Food Safety and Standards Act, 2006 (

34 of 2006

), the Central Government hereby makes the following rules regulating the salaries and allowances payable to, and other conditions of service of, the Chairperson and Members other than ex officio Members of the Food Safety and Standards Authority of India, namely:--

1.

Short title and commencement

.(1) These rules may be called the Food Safety and Standards Authority of India (Salaries, Allowance and Other Conditions of Service of Chairperson and Members) Rules, 2008.

(2)

They shall come into force on the date of their publication in the Official Gazette.

2.

Definitions

.(1) In these rules, unless the context otherwise requires,-

(a)

"Act" means the Food Safety and Standards Act, 2006 (

34 of 2006

);

(b)

"Authority" means the Food Safety and Standards Authority of India established under sub-section (1) of section 4 of the Act;

(c)

"Chairperson" means the Chairperson of the Authority;

(d)

"meeting" means a meeting convened by the Authority;

(e)

"Member" means a member of the Authority.

(2)

All other words and expressions used herein but not defined shall have the meanings respectively assigned to them in the Act.

3.

Salaries and allowances

.(1) The Chairperson shall be paid a salary of twenty-six thousand rupees per month (fixed).

(2)

The Chairperson shall be entitled to draw dearness allowance and city compensatory allowance at the rate admissible to officers holding Group 'A' post of the Central Government drawing an equivalent pay:

Provided that in case of appointment of a person as the Chairperson who has retired from the service under the Central Government or a State Government and who is in receipt of or has received or has become entitled to receive any retirement benefits by way of pension, gratuity, employers contribution to the Contributory Provident Fund or other forms of retirement benefits, the pay of such person shall be reduced by the gross amount of pension or employers contribution to the Contributory Provident Fund or any other form of retirement benefits, if any (except pension equivalent of gratuity), drawn or to be drawn by him:

Provided further that if a person who has retired from any service including service under Central Government or a State Government, Public Sector Undertakings or Autonomous Bodies is appointed as the Chairperson, he shall be entitled to receive dearness allowance at the same rate as is admissible to officers holding Group 'A' post of the Central Government drawing an equivalent pay, but he shall not be entitled to receive dearness relief on pension during the period he holds office as such Chairperson.

4.

Leave

.- (1) The Chairperson shall be entitled to thirty days of earned leave, for every year of service.

(2)

The payment of leave salary during leave shall be governed by rule 40 of the Central Civil Services (Leave) Rules, 1972.

(3)

The Chairperson shall be entitled to encashment of fifty percent. of earned leave standing to his credit at any time.

5.

Provident Fund

.- The Chairperson shall be entitled to subscribe to the Contributory Provident Fund at his option and in case of his so opting shall be governed by the Contributory Provident Fund Rules, 1962.

6.

Travelling allowance and daily allowance

.- The Chairperson shall be entitled to travelling allowance and daily allowance for transportation of personal effects while on tour or on transfer (including the journey undertaken to join the Authority or on the expiry of his term with the Authority to proceed to his home-town), at the same rates as are admissible to officers holding Group 'A' post of the Central Government drawing an equivalent pay.

7.

Domestic official tours

.- The Chairperson, while on tour, shall be entitled to the facility of Government accommodation in guest houses or inspection bungalows run by the Central Government, wherever available, on payment of normal rent at outstations while on tour as is admissible to officers holding to Group 'A' post of the Central Government drawing an equivalent pay: Provided that where Government accommodation is not available, while on domestic official tour, the Chairperson shall be entitled to stay in India Tourism Development Corporation hotels on a reimbursement basis and wherever India Tourism Development Corporation hotels are not available, in other hotels on reimbursement basis, re-imbursement in both cases being limited to lodging charges only, and on a single room occupancy basis.

8.

Leave travel concession

.- The Chairperson shall be entitled to leave travel concession at the same rate as is admissible to officers holding Group 'A' post of the Central Government drawing an equivalent pay.

9.

Medical treatment

.- The Chairperson shall be entitled to medical treatment and hospital facilities, as provided in the Central Government Health Scheme and at places where the Central Government Health Scheme is not in operation, the Chairperson shall be entitled to facilities as provided in the Central Services (Medical Attendance) Rules, 1944.

10.

Official visits abroad

.- (1) The Chairperson shall be entitled to undertake official visits abroad with the prior approval of the Minister of the Government of India in-charge of the Ministry of Health and Family Welfare and after clearance from the Ministry of External Affairs on the points relating to political affairs.

(2)

The daily allowance and provision of hotel accommodation during the period of tour abroad shall be regulated in accordance with the Government instructions as applicable to officers of equal grade in the Government of India.

(3)

Indian Missions abroad shall take care of arrangements and extend facilities as are admissible to officers holding Group 'A' post of the Central Government drawing an equivalent pay.

11. Conveyance facility

.- The Chairperson shall be entitled to conveyance facilities as are admissible to officers holding Group 'A' post of the Central Government drawing an equivalent pay.

12.

Accommodation

.-The Chairperson shall be entitled to rent free accommodation at the rates specified by the Central Government or house rent allowance at the rate of thirty percent. of his pay in lieu thereof; and on demitting office, the Chairperson shall be entitled for retention of residential accommodation for one month on the same terms and conditions.

13.

Retirement from Government service

.-Chairperson, who on the date of his appointment to the Authority, was in service of the Central Government or a State Government, shall seek retirement from such service before his appointment to the Authority.

14.

Meeting allowance to a member

.-A member, not being an ex officio member, shall be entitled to received an allowance of two thousand rupees for a meeting of the Authority attended by him:

Provided that total of such allowance to a member shall not exceed twenty-six thousand rupees per month.

15.

Conveyance allowance to a member

.-A member, not being an ex officio member, shall, for attending a meeting of the Authority, be reimbursed an amount of five hundred rupees or the actual expenses incurred by him, whichever is less, and the reimbursement shall be claimed on self certification basis:

Provided that no conveyance allowance shall be admissible to a Government officer appointed as a member of the Authority:

Provided further that where a member is called upon to go out of the ordinary place of his residence for discharging his duties as such member shall be entitled to travelling allowance, daily allowance, and accommodation at the same rates as are admissible to the Chairperson:

Provided also that official visits abroad by such member shall be governed by the same provisions as are applicable to the Chairperson.

16.

Oath of office and secrecy

.-Every person appointed to be the Chairperson or a Member shall, before entering upon his office, make and subscribe an oath of office and secrecy, in Forms I and II annexed to these rules.

17.

Interpretation

.-If any question arises relating to the interpretation of these rules, the same shall be referred to the Central Government for its decision.

18.

Residuary provision

.-Any matter, not expressly provided in these rules, shall be referred to the Central Government for its decision, and the decision of the Central Government thereon shall be final.

19.

Power to relax

.-The Central Government shall have power to relax any of the provisions of these rules in respect of any class or category of persons.

FORM I

(See rule 16)

Form Of Oath Of Office For The Chairperson And Members Of The Food Safety And Standards Authority Of India

I....., having been appointed as the Chairperson/Member do solemnly affirm/swear in the name of God, that I will faithfully and conscientiously discharge my duties as the Chairperson of the Food Safety and Standards Authority of India, to the best of my ability, knowledge and judgement, without fear or favour, affection or ill-will.

(Name of the Chairperson/Member)

Food Safety and Standards Authority of India

Dated

Place

FORM II

(See rule 16)

Form Of Oath Of Secrecy For The Chairperson And Members Of The Food Safety And Standards Authority Of India

I....., having been appointed as the Chairperson/ Member do solemnly affirm/swear in the name of God, that I will not directly or indirectly communicate or reveal to any person or persons any matter which shall be brought under my consideration or shall become known to me as the Chairperson of the said Food Safety and Standards Authority of India, except as may be required for the due discharge of my duties as the Chairperson.

(Name of the Chairperson/Member)

Food Safety and Standards Authority of India

Dated

Place

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